

Vanshraj Bind v. Chairman-cum-Managing Director and Others

High Court of Judicature at Allahabad · Division Bench · 8 May 2023 · 2023:AHC:97635-DB · Writ-C No. 12358 of 2023 · **Petition disposed; theft recovery withdrawn, no merits decision**

HEADNOTE

A recovery citation for alleged theft of electricity having been withdrawn, with the licensee undertaking a fresh notice and assessment, the writ was disposed of without a finding on the demand, leaving the Corporation at liberty to pass the fresh order strictly under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Vanshraj Bind petitioned the Allahabad High Court against a recovery citation dated 31 January 2023, issued by respondent no. 5, demanding Rs. 7,84,913 and other charges in an electricity-theft case. On 13 April 2023 the Court directed that no coercive action be taken on that certificate and later directed service on the Power Corporation's panel counsel. When the matter was taken up on 8 May 2023, counsel for the Corporation stated that the recovery proceedings had been withdrawn and that a fresh notice and assessment order would be issued.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.5

fresh assessment after withdrawal of theft recovery

HOLDING

Where the licensee withdraws a recovery citation issued for alleged theft of electricity and states that it will issue a fresh notice and pass a fresh assessment order, the writ challenging that citation is disposed of without further direction, with liberty to the licensee to pass the fresh order strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. ¶ 1-4

FLAG Order invokes the Supply Code, 2005 procedure at large and does not number clause 8.5.

PRINCIPLE TAGS

fresh-assessment-strictly-under-supply-code The 31 January 2023 recovery citation for Rs. 7,84,913 in a theft case was withdrawn; the writ was disposed with liberty to the Corporation to pass a fresh assessment order strictly under the Supply Code, 2005 procedure. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY OF THE THEFT ASSESSMENT OF RS. 7,84,913 AND OF THE RECOVERY CITATION DATED 31 JANUARY 2023

The Corporation withdrew the citation and undertook a fresh assessment. The Court made no finding on quantum or on whether the earlier assessment followed the Code. ¶ 1-2